BRIEF OF APPELLANT

UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

19-7391

ADRIAN A. CHAVEZ,

Appellant,

v.

ROBERT L. WILKIE,
SECRETARY OF VETERANS AFFAIRS,

Appellee.

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STATEMENT OF THE ISSUE

The duty to assist requires VA to assist a claimant in obtaining evidence necessary to substantiate a claim for service connection. This includes making efforts to obtain all relevant records pertaining to a veteran's military service unless no reasonable possibility exists that such assistance would aid in substantiating the claim. Here, the Veteran reported working on C-123 aircraft—the type of aircraft known to have been involved in spraying herbicides during the Vietnam era—at a time and place that such aircraft were known to have been involved in spraying missions. However, VA failed to undertake any efforts to obtain records that may verify that the Veteran came into contact with C-123 aircraft contaminated with herbicides. Did the Board fail to provide adequate reasons or bases for its decision and ensure compliance with the duty to assist?

STATEMENT OF THE CASE

Adrian A. Chavez served honorably in the United States Air Force from January 1966 until December 1969. *See* R-1103 (DD 214). For his service, Mr. Chavez was awarded the National Defense Service Medical and the Air Force Good Conduct Medal. *See id.*

Mr. Chavez served at Clark Air Force Base (AFB) for two years in the 604th Mass Unit. *See, e.g.,* R-676 (675-76); R-791; R-841. His Air Force Specialty Codes were 4313 and 4315, indicating that he served as an aircraft maintenance specialist.

See R-635; R-705; R-744. He performed "pre-flight, 7-day home station check[s], and thru-flight inspections on C-141 aircraft." R-676; *see also* R-682. He performed "duties on all MAC jet and turbo-jet aircraft transiting" at Clark AFB, including "unscheduled maintenance, thru-flight, servicing, minor maintenance inspection, jacking, towing, and reconfiguration of aircraft." R-656 (655-57). He worked 12 hours per day, 7 days per week to ensure that troops and cargo could be carried back and forth from Vietnam as fast as possible. R-403 (401-04).

Although Mr. Chavez was assigned to the 604th Mass Unit he "worked on . . . planes regardless of [the] unit [he] was assigned to[ ]." *Id.* He and his fellow service members "worked on many other planes other th[a]n what [they] were assigned to[ ]" while stationed in the Philippines. *Id.* This included C-123 aircraft from Operation Ranch Hand[1]. *See* R-403-04.

After service, in November 2012, Mr. Chavez was diagnosed with prostate cancer. *See* R-485; *see also* R-486. In 2014, he was also diagnosed with coronary artery disease. *See, e.g.,* R-166 (166-68); R-219 (219-24); R-482 (481-84).

[1] "From 1962 to 1971, the U.S. Air Force sprayed nearly 19 million gallons of herbicides in Vietnam, of which at least 11 million gallons was Agent Orange, in a military project called Operation Ranch Hand." Institute of Medicine, *Veterans and Agent Orange: Health Effects of Herbicides Used in Vietnam*, at 74 (1994), *available at* https://www.nap.edu/catalog/2141/veterans-and-agent-orange-health-effects-of-herbicides-used-in. The Court can, and should, take judicial notice of this study, like it did of a similar study in *Gray v. McDonald*, 27 Vet.App. 313, 322 n.7, n.9 (2015). *See also Smith v. Derwinski*, 1 Vet.App. 235, 238 (1991) ("Courts may take judicial notice of facts not subject to reasonable dispute." (citing Fed.R.Evid. 201(b)).

Mr. Chavez filed a claim for service connection for prostate cancer and ischemic heart disease in January 2016. *See* R-851-54. Two months later, the Regional Office denied both claims. *See* R-617-21. In his timely notice of disagreement, Mr. Chavez stated that he "got prostate cancer from being on b[oard] many . . . aircraft and cargo in and out of Vietnam." R-585 (584-90). The RO issued a statement of the case that continued to deny service connection for prostate cancer and ischemic heart disease, R-431-52, and Mr. Chavez perfected his appeal to the Board, R-401-04.

In July 2019, the Board denied service connection for coronary artery disease[2] and prostate cancer. *See* R-5 (3-14). The Board found that "the C-123 herbicide exposure presumption [wa]s not applicable in this case" because "[w]hile the list of affected locations for the herbicide-spraying C-123 aircraft does include Clark AFB at the time the Veteran was stationed there (1969) and he has the requisite AFSC," his assigned unit did not fall into the units currently identified by VA. R-10. In addition, it found that "the Veteran's assumption that that [sic] he was exposed to herbicides while serving at Clark AFB is not supported by competent evidence" and that "the Veteran's reports of herbicide exposure are not competent, absent any salient detail regarding his claimed exposure." *Id.*

[2] Ischemic heart disease is also called coronary artery disease and "is the term given to heart problems caused by narrowed heart (coronary) arteries that supply blood to the heart muscle." Institute of Medicine, *Cardiovascular Disability: Updating the Social Security Listings*, 102 (2010), *available at* https://www.ncbi.nlm.nih.gov/books/NBK209975/pdf/Bookshelf_NBK209975.pdf (last accessed June 22, 2020).

This appeal followed.

SUMMARY OF THE ARGUMENT

In denying service connection for prostate cancer and coronary artery disease, the Board failed to adequately determine whether Mr. Chavez had actual exposure to aircraft contaminated by herbicides. And it did not have sufficient evidence to undertake this analysis because it failed to ensure that the duty to assist was satisfied. The record indicates that the Veteran serviced C-123 aircraft that were not assigned to his unit at a time and place that C-123 aircraft used in Operation Ranch Hand are known to have been. Yet VA failed to make reasonable efforts to obtain additional unit records that may have verified that the Veteran performed work on those contaminated aircraft. As a result, the Board's denial of service connection for both prostate cancer and coronary artery disease was based on an underdeveloped record.

Remand is warranted for the Board to ensure that VA's duty to assist is satisfied, properly apply the law, and provide an adequate statement of reasons or bases for its decision.

STANDARD OF REVIEW

The Court reviews the Board's findings with respect to a veteran's claim for service connection and VA's satisfaction of the duty to assist under the "clearly erroneous" standard of review. 38 U.S.C. § 7261(a)(4); *Lennox v. Principi*, 353 F.3d

941, 944 (Fed. Cir. 2003). "A finding is 'clearly erroneous' when although there is evidence to support it, the reviewing court on the entire evidence is left with the definite and firm conviction that a mistake has been committed." *Gilbert v. Derwinski*, 1 Vet.App. 49, 52 (1990) (quoting *United States v. U.S. Gypsum Co.,* 333 U.S. 364, 395 (1948)). This Court may hold a clearly erroneous finding unlawful and set it aside or reverse it. *See* 38 U.S.C. § 7261(a)(4).

The Court reviews claims of legal error by the Board de novo. *See Butts v. Brown*, 5 Vet.App. 532, 539 (1993) (en banc). The Board's interpretation of statutes and regulations is a legal ruling to be reviewed without deference by the Court. *See Lennox v. Principi*, 353 F.3d at 945. A conclusion of law shall be set aside when that conclusion is determined to be "arbitrary, capricious, an abuse of discretion, or otherwise contrary to law, or unsupported by adequate reasons and bases." *King v. Shinseki*, 26 Vet.App. 433, 437 (2014); *see* 38 U.S.C. § 7261(a)(3).

ARGUMENT

During Operation Ranch Hand (ORH), C-123 aircraft were used for "defoliation missions to destroy enemy food supplies and to clear and expose enemy transportation and infiltration routes." Institute of Medicine, *Post-Vietnam Dioxin Exposure in Agent Orange-Contaminated C-123 Aircraft,* The National Academies Press, 27, (2015), available at https://www.nap.edu/read/18848/chapter/5#33 [hereinafter

IOM C-123 report] (last accessed June 22, 2020). The Air Force personnel involved in the spraying activities in Vietnam "have been considered among the most highly exposed workers to the chemicals that were in defoliants," and "[p]ersonnel who provided primary maintenance for the [C-123 aircraft] were also potentially exposed to herbicides." *Id.* at 29-30.

VA has conceded that C-123 aircraft used to spray Agent Orange in Vietnam as part of ORH continued to have herbicide residue on their interior surfaces after the operation. *See* 38 C.F.R. § 3.307(a)(6)(v) (2019). Thus, any "individual who performed service in the Air Force or Air Force Reserve under circumstances in which the individual concerned regularly and repeatedly operated, maintained, or served onboard C-123 aircraft known to have been used to spray an herbicide agent during the Vietnam era shall be presumed to have been exposed during such service to an herbicide agent." *Id.* But VA will presume that only Air Force members who were assigned to certain units "regularly and repeatedly operated, maintained, or served onboard C-123 aircraft." *Id.* Those units are contained in a list that VA publishes on its website. *See* C-123 Aircraft Agent Orange Exposure Claims, Air Force Specialty Codes and Units, available at https://www.benefits.va.gov/compensation/docs/AO_C123_AFSpecialityCodesUnits.pdf, (last accessed June 6, 2020) [hereinafter C-123 Specialty Codes & Units].

There is no dispute that Mr. Chavez served at Clark AFB, one of the "affected locations for herbicide-spraying C-123 aircraft . . . at the time [he] was stationed

there." R-10. Mr. Chavez also had the requisite Air Force Specialty Code: 4313 and 4315, indicating that he was an Aircraft Maintenance Specialist. *See id.*; *see also* R-635; R-744; C-123 Specialty Codes & Units. Mr. Chavez was not, however, assigned to the squadron—405th Fighter Wing—that VA has recognized as a unit that "regularly and repeatedly operated, maintained, or served onboard C-123 aircraft" at Clark AFB during the time that Mr. Chavez was stationed there. *See* 38 C.F.R. § 3.307(a)(6)(v); *see also* C-123 Specialty Codes & Units. There is no dispute, then, that he is not entitled to a presumption that he was exposed to herbicides during his service at Clark AFB.

However, even a veteran who is not entitled to presumptive herbicide exposure can also be establish exposure on a facts-found basis. *See Combee v. Brown*, 34 F.3d. 1039, 1042 (Fed. Cir. 1994). Therefore, the relevant question here is whether the evidence shows that Mr. Chavis was exposed to herbicides by conducting maintenance on contaminated C-123 aircraft. *See* R-403.

The Board denied the claim based on its conclusion that Mr. Chavis is not competent to state that he was exposed to herbicides. R-10. But he *is* competent to state that he worked on C-123 aircraft at Clark AFB during the Vietnam era. "Competent lay evidence means any evidence not requiring that the proponent have specialized education, training, or experience" and "if it is provided by a person who has knowledge of facts or circumstances and conveys matters that can be observed and described by a lay person." 38 C.F.R. § 3.159(a)(2) (2019). Further, to be competent, "a witness must have personal knowledge." *Layno v. Brown*, 6 Vet.App.

465, 469 (1994). "Personal knowledge is that which comes to the witness through the use of his senses—that which is heard, felt, seen, smelled, or tasted." *Id.*

Here, the record reflects that the Veteran was a qualified aircraft mechanic, *see, e.g.,* R-676; R-669, who had specialized training and experience to identify specific aircraft, *see* R-705. And here, he identified C-123 aircraft. *See* R-403. Mr. Chavez also reported that he "worked on . . . planes regardless of [the] unit [he] was assigned to[ ]" and that he "worked on many other planes other th[an] what [he] [was] assigned to[ ]." *Id.* The Veteran is competent to report that he worked on aircraft assigned to other units. *See Layno*, 6 Vet.App. at 469.

In this regard, the Board did not find that Mr. Chavez lacked credibility on this issue. *See* R-4-12. "And absent an indication that the Board found that lay evidence not credible, or had a reason not to address its credibility . . . [the Court] will conclude that the Board found the lay evidence credible." *Miller v. Wilkie*, 32 Vet.App. 249, 260 (2020). Mr. Chavez, therefore, competently and credibly reported that he worked on aircraft that were assigned to other units. *See id.*; *see also* R-403. Further, Mr. Chavez is competent to identify C-123 aircraft. *See* R-403; R-705.

Therefore, Mr. Chavez competently and credibly reported working on C-123 aircraft at Clark AFB during the time that contaminated C-123 aircraft were at the base. *See Miller*, 32 Vet.App. at 260; *see also* R-403-04. He also competently and credibly reported that he worked with other units. *See* R-403-04. The question remains, then, whether the C-123 aircraft the Veteran worked on were (1) assigned to

one of the units VA has identified as having members that "regularly and repeatedly operated, maintained, or served onboard C-123 aircraft," or (2) otherwise involved in ORH. *See* 38 C.F.R. § 3.307(a)(6)(v). However, in order to properly adjudicate the Veteran's claim on a facts-found a basis, the Board needed to retrieve additional records. *But see* R-10. But there is no indication that VA made any attempts to get additional records in this case.

The Secretary has the duty "to assist a claimant in obtaining evidence necessary to substantiate" a claim, which includes the duty to make reasonable efforts to obtain relevant records. 38 U.S.C. § 5103A(a)(1). VA, therefore, must "make efforts to obtain . . . relevant records pertaining to the claimant's active military, naval or air service that are held or maintained by a governmental entity . . . and *any* other relevant records held by any Federal department or agency." 38 C.F.R. § 3.159(c)(3) (2019) (emphasis added). It must make these efforts unless "*no* reasonable possibility exists that such assistance would aid in substantiating the claim." 38 U.S.C. § 5103A(a)(2) (emphasis added). And "[w]henever the Secretary attempts to obtain records from a Federal department or agency . . . the efforts to obtain those records shall continue until the records are obtained unless it is reasonably certain that such records do not exist or that further efforts to obtain those records would be futile." 38 U.S.C. § 5103A(c)(2).

VA failed to make such reasonable efforts here. First, VA failed to conduct a search of the 405th Fighter Wing unit records—which both VA generally and the

Board specifically concede serviced affected aircraft. *See* R-10; *see also* C-123 Specialty Codes & Units. The Veteran reported that he "worked on . . . planes regardless of [his] unit" and "worked on many other planes other th[a]n what [he] [was] assigned to[ ]." R-403. This might have included working with the 405th Fighter Wing on aircraft assigned to their unit. *See id.* Yet the RO denied his claim without requesting any information from this unit. *See* R-614-21. Unless and until it did so, and received a response from the JSRRC as to whether any unit records from the 405th Fighter Wing were relevant to the Veteran's claims, the Board lacked sufficient information to decide the claims. *See* 38 U.S.C. § 5103A(c)(2). Had VA retrieved these records, they might have shown that the 405th Fighter Wing worked with members of the Veteran's unit. Yet VA failed to recover these unit records, and for this reason alone, vacatur and remand are warranted. *See* R-4-12; 38 U.S.C. § 5103A(c)(2).

Second, the Board failed to make any attempts to retrieve Mr. Chavez's unit records. *See* 38 U.S.C. § 5103A(c)(2). Had VA received his unit records, it might have indicated that Mr. Chavez's unit worked on aircraft returning from Vietnam—including C-123 aircraft. Although VA has a list of Air Force units that it is certain—or relatively certain—had regular and repeated exposure to contaminated aircraft, the list is not exhaustive. In 2015, the Institute of Medicine found:

> considerable effort by a number of parties has failed to establish exactly how many C-123s the military had in Vietnam; how many were used for spraying herbicides (the ones referred to in this report as ORH C-123s); how many sprayed only insecticides; how many were returned to the

> United States; how many ORH C-123s and how many C-123s that had not been in Vietnam were allocated to the various reserve units.

See IOM C-123 report at 33.

Although the IOM C-123 report is not part of the record, the Court can look outside the record to assess prejudicial error. *See Byron v. Shinseki*, 670 F.3d 1202, 1206 (Fed. Cir. 2012) (citing *Newhouse v. Nicholson*, 497 F.3d 1298, 1301-02 (Fed. Cir. 2007)) (holding that the Court may undertake fact finding solely to consider harmless error). Indeed, the prejudicial legal error analysis is distinct from the Court's determination of whether the Board committed an error, and it accommodates a broader scope of review than the limitations on the Court's ability to conduct fact-finding in the first instance under 38 U.S.C. § 7261(c) allow. *See Mayfield v. Nicholson*, 19 Vet.App. 103, 111 (2005) ("[B]efore prejudice becomes relevant, of course, the Court must conclude that there has been an error."), *rev'd on other grounds*, 444 F.3d 1328 (Fed. Cir. 2006); *see also Shinseki v. Sanders*, 556 U.S. 396, 406 (2009) (holding that this Court is required to "take due account of the rule of prejudicial error," which requires "the same kind of 'harmless-error' rule that courts ordinarily apply in civil cases"). *Cf. Duenas v. Principi*, 18 Vet.App. 512, 521 (2004) (Hagel, J., concurring) (using a medical text that was not part of the Record Before the Agency to note symptoms of heart disease, supporting possible entitlement to an examination).

The Court may also review the IOM C-123 report for the purposes of determining whether a case or controversy exists as to whether additional efforts to

assist the Veteran were required. *See Norvell v. Peake*, 22 Vet.App. 194, 201 (2008), *aff'd sub nom. Norvell v. Shinseki*, 333 F. App'x 571 (Fed. Cir. 2009). Here, the IOM C-123 report shows that VA's current list of contaminated aircraft is not exhaustive. *See* IOM C-123 report at 33. Therefore, it is possible that a search of Mr. Chavez's unit records may indicate that he worked on contaminated C-123 aircraft. *See Norvell*, 22 Vet.App. at 201.

Here, the record indicates that the Veteran's duties included working "on all MAC jet and turbo-jet aircraft transiting th[e] station. These duties include *unscheduled maintenance*, *thru-flight*, servicing, minor maintenance inspection, jacking, towing, and reconfiguration of aircraft." R-656 (emphasis added). Thus, the Veteran's unit records might have corroborated his statements that he worked on aircraft returning from Vietnam. *See* R-403. And if those aircraft included C-123 aircraft—given that the current list of contaminated aircraft provided by VA is not exhaustive—the Board could have assessed whether it was at least as likely as not that the C-123 aircraft that Mr. Chavez worked on were used in ORH. *See* IOM C-123 report at 33. Thus, the Court can, and should, look to the contents of the IOM C-123 report to assess the prejudice to the Veteran's claim as a result of VA's failure to submit a request for the Veteran's unit records. *See Byron,* 670 F.3d at 1206.

Such a request could have easily been submitted to the JSRRC, as the JSRRC is part of the U.S Army's Record Management & Declassification Agency, and its mission is to "provide direct support to the Department of Veterans Affairs" by

"research[ing] official military unit records and data bases [sic] for information which may verify the causal incident described by a Veteran in a disability claim for compensation." Joint Services Records Research Center Mission, https://www.rmda.army.mil/jsrrc/RMDA-JSRRC-Mission.html (last visited June 6, 2020). Yet VA failed to do so, violating its duty to obtain records relating to the Veteran's active service. *See* 38 U.S.C. § 5103A(a)(1). Without these records, the Board did not have sufficient information to determine whether the Veteran was exposed to herbicides in service. *But see* R-10.

Ultimately, the Board's errors were prejudicial because either the 405th Fighter Wing unit records or the Veteran's unit records may have resolved whether the C-123 aircraft the Veteran competently and credibly reported that he worked on were contaminated. *See Simmons v. Wilkie*, 30 Vet.App. 267, 279 (2018) (explaining that prejudice occurs when the error "could have affected the outcome of the determination"). "In the context of the duty to assist in obtaining records, the relevance of the documents *cannot be known with certainty* before they are obtained." *Hyatt v. Nicholson*, 21 Vet.App. 390, 394 (2007), *order withdrawn sub nom. Hyatt v. Peake*, 22 Vet.App. 211 (2008) (emphasis added); *see also Talley v. Brown*, 6 Vet.App. 72, 74 (1993) (holding that duty to assist was breached because RO failed to secure records that were potentially relevant); *Schafrath v. Derwinski*, 1 Vet.App. 589, 593-94 (1991) (noting that the duty to assist requires efforts to secure records that are potentially relevant or explanation for failure to do so). Without further investigation into

whether the Veteran's unit records or those of the 405th Fighter Wing contain information relevant to the Veteran's claim, the Board did not have enough information to determine whether VA satisfied the duty to assist. *See Wagner v. United States,* 365 F.3d 1358, 1365 (Fed. Cir. 2004) ("Where the effect of an error on the outcome of a proceeding is unquantifiable . . . we will not speculate as to what the outcome might have been had the error not occurred.").

Further, once herbicide exposure is established, service connection for both prostate cancer and coronary artery disease would be presumed. *See* 38 C.F.R. 3.309(e) (2019); *see also* R-166; R-219; R-485-86. Therefore, the Board's failure to ensure that VA satisfied its duty to assist Mr. Chavez by obtaining federal records relevant to his claim constituted prejudicial error warranting vacatur and remand. *See* 38 U.S.C. § 5103A(c)(2). At the very least, remand is warranted for the Board to provide an adequate statement of reasons or bases, as it did not even discuss whether the duty to assist was satisfied, much less whether JSRRC requests were warranted. *See* R-4-12.

CONCLUSION

Mr. Chavez served in the Air Force in 1969—during the Vietnam era—at Clark AFB—a location where contaminated C-123 aircraft from ORH were serviced. During this time, he frequently serviced aircraft outside of his unit. Specifically, Mr. Chavez worked on C-123 aircraft returning from Vietnam. Nevertheless, VA has

neglected to make reasonable efforts to obtain records that might demonstrate that the aircraft that Mr. Chavez serviced were the contaminated aircraft that are known to have been on Clark AFB or other contaminated aircraft. Had VA conducted this required development, it might have concluded that Mr. Chavez was exposed to herbicides during his service at Clark AFB and awarded presumptive service connection for his prostate cancer and coronary artery disease.

Therefore, remand is warranted for the Board to ensure that VA's duty to assist is satisfied, properly apply the law, and provide an adequate statement of reasons or bases for its decision.

Respectfully submitted,

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